

LAW & MOTION CALENDAR
TENTATIVE RULINGS

May 29, 2026

9:00 AM, 10:00 AM, and 1:30 PM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
9:00 AM		
1	Torres vs. Munch and Crunch, LLC 2024-01434673	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the prior minute order. The Court asked counsel to provide the original and amended LWDA letters. Exhibits A and B to counsel’s declaration are proofs of the letters’ submission to the LWDA, not the letters themselves. Before the Court can approve the settlement, it must review the letters. To that end, counsel is to file the letters as soon as possible. Assuming the letters are in order, the Court intends to GRANT approval of the parties’ PAGA settlement. Aside from the letters issue, the Court finds the parties’ settlement, as amended, is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 72.) The Court will approve the following distributions: 1. Attorneys’ fees in the amount of \$110,700, or 30% of the

		GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by counsel, and the estimated lodestar. In approving this amount, the Court is not approving any particular hourly billing rates proposed by counsel. 2. Litigation costs in the amount of \$19,479, per the amended costs ledger. 3. Administration costs in the amount of \$10,000, per the administrator’s revised bid. 4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors discussed in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. The amount remaining is to be distributed 75% to the LWDA and 25% to the aggrieved employees as required by the version of PAGA in effect when the case was filed. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
2	Novello vs. HEG Enterprises, Inc. 2024-01391376	Plaintiff's Motion for Final Approval The Court has reviewed the supplemental briefing filed in response to the prior minute order. The motion for approval of the parties’ PAGA settlement is GRANTED. The Court finds the parties’ settlement is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 72.) The Court approves the following distributions: 1. Attorneys’ fees in the amount of \$225,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by counsel, and the estimated lodestar. In approving this amount, the Court is not approving any particular hourly billing rates proposed by counsel. 2. Litigation costs in the amount of \$48,000, the parties’ agreed-upon not-to-exceed amount. 3. Administration costs in the amount of \$7,250, per the